

TO: The Parliamentary Portfolio Committee on Justice and Correctional Services

ATTENTION: Adv. Vamaano / Mr. Mthonjeni

CC: South African Human Rights Commission (Western Cape); Office of the Judge President; Mrs. Ruanne David (Director of Court Operations)

DATE: 10 April 2026

REF: EH/JO/2026/001 — RESTRICTED

COMPREHENSIVE MEMORANDUM

SYSTEMIC JUDICIAL OBSTRUCTION, ADMINISTRATIVE MALPRACTICE, AND THE PROCEDURAL PERSECUTION OF A WHISTLEBLOWER

1. THE INITIAL OBSTRUCTION: LABOUR COURT (5 MARCH – 2 APRIL 2026)

The present crisis originates in a deliberate and sustained failure by the Labour Court Registrar's office to discharge its statutory duty — a failure that unfolded over twenty-eight days while the Complainant was living without running water and facing imminent homelessness.

- **05 March 2026:** An urgent application in terms of Section 77A of the Basic Conditions of Employment Act was filed, challenging an unlawful salary deduction amounting to 40.47% of the Complainant's normal earnings — a forensically documented sum of R14,811.77. Registrar Farzaana Ismail was expressly notified of the Complainant's destitution and the threat of eviction. The matter was marked urgent.
- **06 March 2026:** A formal notice of intent to escalate to the Judge President was issued should the matter not be enrolled. This notice was received and deliberately ignored.
- **The Consequence:** A case number (No. 2026-077546) was withheld for a full 28 days, only being issued on 02 April 2026. The Court's handling rendered the concept of 'urgency' an institutional mockery: the very financial injury that founded the application was being perpetuated by the Court's inaction. This constitutes a prima facie violation of Section 34 of the Constitution — the right of access to courts.

Institutional Context

The destitution this Court refused to address on 05 March 2026 is the same condition it would later exploit — through the imposition of fees by its service provider Inlexso — to prevent the Complainant from obtaining the audio evidence needed to challenge the unlawful orders that followed. The Court's silence on 05 March and its silence on 26 March are not coincidental; they are two phases of the same systemic failure.

2. THE HIGH COURT COLLAPSE AND MEDICAL DURESS (25 MARCH 2026)

Because the Labour Court remained institutionally silent throughout March 2026, the Complainant was compelled — under conditions of documented extreme psychological duress — to seek urgent relief before the Western Cape High Court (Case No. 2026-066952).

- **Disclosed Vulnerability:** The Complainant formally placed the Court on notice of his diagnosed Post-Traumatic Stress Disorder and requested the reasonable latitude properly afforded to litigants in person under the Biowatch constitutional framework.
- **Judicial Conduct:** The presiding Judge openly derided the Complainant's Practice Note during the hearing. Critically, the Judge placed on record that her patience had 'deteriorated' between the 10:00

AM and 14:15 PM sessions — an extraordinary judicial admission confirming that the Complainant was adjudicated by a Court whose temperament had materially shifted against him during the proceedings.

- **The Unauthorized Representative:** An Advocate attended the proceedings without the Complainant's mandate and unilaterally assumed conduct of the matter. The direct consequence of this unauthorized intervention was that the matter was struck from the roll with a punitive Scale C costs order against the Complainant. This same Advocate was thereafter removed from the Judge's chambers and placed under 72-hour involuntary psychiatric observation — an outcome the Court witnessed in real time.

The 'Ambulance at the Courthouse' Principle — Legal Voidability of the Costs Order

A court of law may not base a punitive order upon the conduct of a party's purported representative when that representative was, at the material time, in an acute state of psychiatric crisis — a crisis the Court itself witnessed and was thereby placed on legal notice of. The Complainant is a specialist registered nurse with 16 years of clinical governance experience; he identifies the Advocate's conduct on 25 March as consistent with acute mental decompensation. The resulting costs order was therefore granted on the basis of legally tainted conduct and is voidable on that ground alone. The Complainant's Rule 42 Rescission application and Leave to Appeal are grounded, in part, on this precise basis.

3. THE CONCEALMENT OF EVIDENCE (26 MARCH – PRESENT)

A Rule 42 Rescission application — and the Complainant's pending Leave to Appeal — require the audio recordings of the 25 March 2026 hearing as primary documentary evidence. The Office of the Chief Justice has, through coordinated silence and financial barriers, ensured that this evidence remains inaccessible.

- **The Request:** On 26 March 2026, formal written requests were directed to Nicola Hanekom (Acting Chief Registrar) and the relevant Court Manager for all four audio segments of the 25 March hearing, with specific emphasis on the 14:05–14:23 segment, which captures the judicial admissions detailed in Section 2 above. As of the date of this memorandum — 15 days later — no response has been received.
- **The Financial Barrier:** The Court's appointed service provider, Inlexso, issued Quotation BB08042601 on 08 April 2026, demanding a deposit the Complainant cannot afford. This requirement operates, in his circumstances, as a paywall between a destitute litigant and the evidence required to vindicate his constitutional rights.
- **The Inference:** The OCJ is demonstrably aware that the audio recordings in question capture both the Judge's derogatory commentary toward the Complainant and the Advocate's visibly deteriorating mental state. By withholding access through silence and financial attrition, the Court is allowing the statutory rescission window to expire whilst the very evidence capable of establishing its own misconduct remains concealed. This is not administrative inefficiency — it is the calculated suppression of evidence by an institution with a direct interest in that evidence remaining suppressed.

4. THE APRIL FILING CRISIS: LABOUR COURT (8–10 APRIL 2026)

As the 90-day statutory deadline for the Complainant's Protected Disclosure Act / Constructive Dismissal claim arrived, the pattern of obstruction escalated from passive delay to active misrepresentation and a staggering breach of the Protection of Personal Information Act 4 of 2013.

- **08 April 2026:** The Complainant's new Statement of Claim was rejected by the Labour Court electronic portal (CRM Reference: 0002589).

- **09 April 2026 (09:58 AM):** The Complainant submitted his signed Statement of Claim directly to the Registrar by email in order to meet the statutory deadline. This submission constitutes valid filing for purposes of prescription.
- **10 April 2026 (08:29 AM):** The Registrar misrepresented material facts to Director Ruanne David, claiming the Complainant had been 'assisted on 02 April.' This claim is demonstrably false: the 02 April assistance related exclusively to Case No. 2026-077546 (the BCEA matter), not to the PDA/Constructive Dismissal claim filed on 09 April. The misrepresentation appears designed to obscure the current filing failure and manufacture a record of compliance.
- **10 April 2026 (09:32 AM) — POPIA Breach:** In what may constitute the most egregious act of administrative malpractice in this chain of events, Registrar Tsakani Soundy transmitted the stamped court documents of a third party — Peter Armstrong vs. City of Cape Town — to the Complainant as purported 'proof' of his own filing. This was not a technical error. This was the unauthorised disclosure of another litigant's confidential judicial records, the provision of false confirmation of filing, and a direct violation of Section 8 of POPIA. The identity of the third party has thereby been exposed without consent.

5. CONSTITUTIONAL INDICTMENT

The collective conduct documented in this memorandum does not represent isolated administrative failures. It constitutes a coherent and systematic pattern of institutional conduct directed against a whistleblower who is simultaneously pursuing a protected disclosure, a constructive dismissal claim, and a delinquency application under Section 162 of the Companies Act. The following constitutional violations are formally placed on record:

- **Section 34 Violation:** The Complainant is being denied meaningful access to courts through deliberate delay, portal obstruction, misrepresentation to supervisory officials, and the weaponisation of financial barriers.
- **Section 9 Violation:** The Complainant is being treated differently from represented, financially resourced litigants — with no reasonable accommodation for his destitution or his status as an unrepresented person with a documented mental health condition.
- **Procedural Trap:** The Complainant is being manoeuvred into a position where he will be required to bring Condonation applications for deadlines he demonstrably met, while simultaneously facing Punitive Costs arising from the conduct of a representative whose mental health crisis rendered his mandate void. This is the procedural architecture of persecution, not justice.

6. FORMAL DEMANDS FOR REMEDY

The Complainant demands the following immediate interventions from the Parliamentary Portfolio Committee, the Judge President, and relevant oversight bodies:

1. **Administrative Backdating:** The PDA / Constructive Dismissal Statement of Claim submitted on 09 April 2026 at 09:58 AM must be physically date-stamped and formally enrolled as of that date. The Complainant will not be penalised for portal failures attributable to the Court's own systems.
2. **Unfettered Access to Audio Recordings:** All four audio segments of the 25 March 2026 hearing — specifically the 14:05–14:23 segment — must be provided to the Complainant immediately and at no cost. A destitute litigant's constitutional right to evidence cannot be subordinated to the commercial interests of a contracted service provider. The state bears this obligation.
3. **Judicial Oversight and Costs Review:** A directive must issue from the Judge President to suspend enforcement of the Scale C punitive costs order pending: (a) a formal review of the presiding Judge's conduct on 25 March 2026, including the on-record admissions regarding judicial temperament; and

(b) confirmation of the Advocate's psychiatric status on the date of the hearing. The Biowatch principle applies: a destitute litigant cannot be penalised for pursuing constitutional rights.

4. **POPIA Investigation:** A formal investigation must be initiated into the disclosure of third-party judicial documents (DPeter Armstrong vs. City of Cape Town) by Registrar Tsakani Soundy. The investigation must determine whether this constitutes a deliberate act of misfeasance, a systemic data governance failure, or both. The Information Regulator must be notified.
5. **Structural Accountability:** This Committee is requested to formally investigate the Labour Court Registrar's office for its 28-day withholding of a case number in the context of a declared destitution emergency, and to make recommendations regarding mandatory response timeframes for urgent matters where litigants have disclosed vulnerability.

Submitted in the public interest and in the bona fide exercise of whistleblower rights,

Sr. Wilbur William Matthee

Specialist Registered Nurse (16 Years Clinical Governance)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

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This memorandum constitutes a formal governance submission under the Protected Disclosures Act 26 of 2000, the Public Protector Act, and the relevant provisions of the Constitution of the Republic of South Africa, 1996.